

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 28, 2026
8:30 AM/1:30 PM

4. SHAUNA COX V. MICHAEL BRYANT II

22FL0270

Respondent filed a Request for Order (RFO) on February 23, 2026, seeking orders adjudicating property that the court had reserved jurisdiction over, as well as clean up and access to the real property. There is no Proof of Service showing Petitioner, Minors' Counsel, or the Department of Child Support Services were properly served.

Petitioner filed a Responsive Declaration on April 15, 2026. It was served on April 15, 2026, to Respondent, Minors' Counsel, and the Department of Child Support Services. Petitioner does not raise the issue of the defect in service, and as such, the court deems she has waived the issue.

The court finds the defect in service is waived as to Petitioner only.

The court drops the matter from calendar due to the failure to properly serve the RFO on all required parties.

TENTATIVE RULING #4: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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5. DAWNDEREE HARRISON V. BLAKE HARRISON

25FL1121

Petitioner filed a Request for Order (RFO) on February 26, 2026, seeking spousal support, property control, and Family Code section 2030 attorney's fees. Petitioner concurrently filed an Income and Expense Declaration. Respondent was served on March 4, 2026; however, the service was missing the Notice of Tentative Ruling as well as the Remote Appearance Request forms.

Respondent filed a Responsive Declaration, as well as Memorandum of Points and Authorities, Declaration of Luke Gary, and an Income and Expense Declaration on May 13, 2026. All were served on May 13, 2026.

Petitioner is seeking guideline spousal support, exclusive use and control of "La Jolla, CA", and attorney's fees in the amount of \$30,000. Respondent opposes the requests as there is currently a temporary Domestic Violence Restraining Order (DVRO) in place and parties are pending trial on the request for a more permanent DVRO. Respondent requests the matter be continued until after the DVRO trial.

The court finds good cause to continue the RFO to join with the currently pending trial, set to commence June 10, 2026, at 8:30 AM in Department 8. Additionally, the court notes there are current orders restricting Petitioner's access to the San Diego property in the temporary DVRO. The court reserves jurisdiction to retroactively award support to the date of the filing of the RFO. The court reserves on the request for Family Code section 2030 attorney's fees.

All prior orders not in conflict with these orders remain in full force and effect. Petition is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: THE COURT FINDS GOOD CAUSE TO CONTINUE THE RFO TO JOIN WITH THE CURRENTLY PENDING TRIAL, SET TO COMMENCE JUNE 10, 2026, AT 8:30 AM IN DEPARTMENT 8. ADDITIONALLY, THE COURT NOTES THERE ARE CURRENT ORDERS RESTRICTING PETITIONER'S ACCESS TO THE SAN DIEGO PROPERTY IN THE TEMPORARY DVRO. THE COURT RESERVES JURISDICTION TO RETROACTIVELY AWARD SUPPORT TO THE DATE OF THE FILING OF THE RFO. THE COURT RESERVES ON THE REQUEST FOR FAMILY CODE SECTION 2030 ATTORNEY'S FEES.